

IN THE CIRCUIT COURT FOR THE SEVENTH JUDICIAL CIRCUIT
IN AND FOR ST. JOHNS COUNTY, FLORIDA
CIVIL DIVISION

ANTONIO TANKSLEY,

Plaintiff,

Case No.:

vs.

Div.:

ANTHONY PENNINGTON, individually and
ANTHONY PENNINGTON as parent and natural
guardian of A [REDACTED] P [REDACTED], a minor,

Defendants.

COMPLAINT AND DEMAND FOR JURY TRIAL

COMES NOW, the Plaintiff, ANTONIO TANKSLEY, by and through undersigned counsel, hereby sues the Defendants, ANTHONY PENNINGTON, individually and ANTHONY PENNINGTON, as parent and natural guardian of A [REDACTED] P [REDACTED], a minor, and in support thereof alleges the following:

JURISDICTION AND VENUE

1. This is an action for damages that exceed exceed Fifty Thousand Dollars (\$50,000.00), exclusive of pre-judgment interest, court costs and attorney's fees.
2. At all times material herein, the Plaintiff, ANTONIO MAURICE TANKSLEY, was and is a resident of Bulloch County, Georgia.
3. At all times material herein, Defendant, A [REDACTED] P [REDACTED], a minor, was and is a resident of Laurel County, Kentucky.
4. At all times material hereto, Defendant, ANTHONY PENNINGTON, was and is a resident of Laurel County, Kentucky.
5. Jurisdiction is proper in the Seventh Judicial Circuit in and for St. Johns County, Florida.

6. The subject incident occurred in St. Johns County Florida.
7. All conditions precedent to this action have occurred, have been performed or have been waived.

GENERAL ALLEGATIONS

8. On or about July 23, 2023, Defendant, ANTHONY PENNINGTON, was the owner of a 2017 Lexus NX (hereinafter referred to as "the Subject Vehicle").
9. On or about July 23, 2023, Defendant, A [REDACTED] P [REDACTED], a minor, operated or maintained with the consent and permission of Defendant, ANTHONY PENNINGTON, the Subject Vehicle, in the vicinity of INTERSTATE 95 (STATE ROAD 9) and MM 318 in St. Johns County, Florida.
10. At the above-referenced time and place, Defendant, A [REDACTED] P [REDACTED] a minor, carelessly, recklessly and negligently operated and/or maintained the Subject Vehicle so that it collided with the motor vehicle that Plaintiff, ANTONIO TANKSLEY, was in.
11. Defendants, ANTHONY PENNINGTON, individually and as parent and natural guardian of A [REDACTED] P [REDACTED], a minor, are responsible for the damages that are foreseeable and proximately caused by Defendant, A [REDACTED] P [REDACTED], a minor's negligence.

COUNT I – NEGLIGENCE AGAINST DEFENDANT, A [REDACTED] P [REDACTED], a minor

12. Plaintiff ANTONIO MAURICE TANKSLEY, realleges and incorporates into this Count paragraphs one (1) through eleven (11) above as if set forth herein.
13. As a result of the collision that occurred on or about July 23, 2023, Plaintiff, ANTONIO TANKSLEY, suffered bodily injury resulting in past and future medical expenses, past and future pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of

ability to earn money, aggravation of a previously existing condition, and other legal damages as are yet undetermined. These losses are either permanent or continuing in nature and Plaintiff, ANTONIO TANKSLEY, will continue suffer these losses into the future.

WHEREFORE, Plaintiff, ANTONIO TANKSLEY, sues Defendant, A [REDACTED] P [REDACTED], a minor, and demands judgement for damages in an amount exceeding Fifty Thousand Dollars, exclusive of costs, against the Defendant, A [REDACTED] P [REDACTED], a minor, and for such other relief as this Honorable Court deems appropriate under the circumstances.

COUNT II – VICARIOUS LIABILITY AGAINST DEFENDANT, ANTHONY PENNINGTON, Individually

14. Plaintiff ANTONIO MAURICE TANKSLEY, realleges and incorporates into this Count paragraphs one (1) through thirteen (13) above as if set forth herein.

15. Defendant, ANTHONY PENNINGTON, as the owner of the Subject Vehicle is strictly liable for Defendant, A [REDACTED] P [REDACTED], a minor's, negligent operation and use of the vehicle under Florida's Dangerous Instrumentality Doctrine.

16. As a result of the collision that occurred on or about July 23, 2023, Plaintiff, ANTONIO TANKSLEY, suffered bodily injury resulting in past and future medical expenses, past and future pain and suffering, mental pain and anguish, disability, disfigurement, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money and aggravation of a previously existing condition. The losses are either permanent or continuing and Plaintiff, ANTONIO MAURICE TANKSLEY, will suffer the loses in the future.

WHEREFORE, Plaintiff, ANTONIO TANKSLEY, sues Defendant, ANTHONY PENNINGTON, and demands judgement for damages in an amount exceeding Fifty Thousand

Dollars, exclusive of costs, against the Defendant, ANTHONY PENNINGTON, and for such other relief as this Honorable Court deems appropriate under the circumstances.

DEMAND FOR JURY TRIAL

Plaintiff, ANTONIO TANKSLEY, demands a trial by jury as a matter of right.

DATED September 12, 2024.

/s/ Matt McGovern, Esq.

Matt McGovern, Esq.

FBN: 41587

Kemp Law Group

Offices FL & GA (Mail) 11567 Trinity Boulevard

Trinity, FL 34655

Phone: 727-847-4878

Fax: 727-375-7300

service@kemplaw.com

matt@kemplaw.com

Attorney For Plaintiff